

How To Sell a Haunted Meth Lab

By: Chaz Wilke - Staff Writer

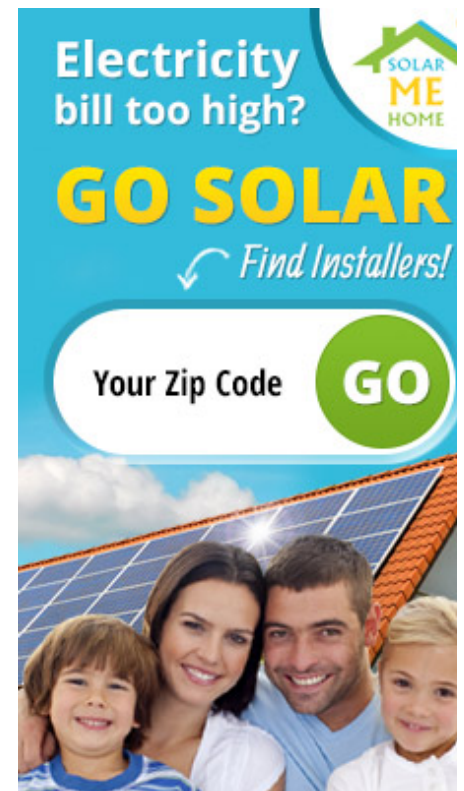
You'll need to disclose your home's dirty little secrets



So you've fallen in love with that split-level ranch with a generous backyard and two-car garage. You put in your bid and the process is moving along smoothly. But, during the process of grabbing those keys, you're going to have to sign off on a disconcerting list of disclosures about the property.

Once governed by caveat emptor, "let the buyer beware" kept the onus of divulging less than desirable facts about a property squarely on the buyer. If the buyer didn't think to ask, the seller didn't have to tell. But over the past few decades, laws have added additional required disclosures (<http://bit.ly/1AJaLw4>) that sellers must inform their buyers of certain information.

"Disclosure laws vary by state, so there's not a one-size-fits-all approach," says (<http://fxn.ws/1KlCLIs>) Stephanie Singer, a National Association of Realtors spokeswoman. Each state is different with regards to exactly what falls under material facts and the requirements to be disclosed. Most disclosures are standard run-of-the-mill type statements, lead paint, mold, that sort of thing. But sometimes, things can get a little weird.



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Death/Ghosts

Disclosure laws vary state by state but most will require a seller to disclose a death related to the condition of the property. "Each state will have slightly different requirements for disclosure," says (<http://bit.ly/1Jkm5QL>) Jim Olenbush, a Texas real estate broker. "In Texas, for example, deaths from natural causes, suicides, or accidents unrelated to the property do not have to be disclosed."

But if a death is the result of a structural failing of the home, that would then require disclosure. Case in point, if a child drowned in the backyard pool due to a faulty lock on the fence surrounding it, the seller must disclose that fact.

In California, the law states a homeowner must disclose any death on the property that happened within the last three years (<http://bit.ly/1cu34hN>). The statute also makes consideration for inquisitive buyers. A seller must disclose any and all known deaths on the property when asked, no matter how long ago it may have happened. But the law provides that any death resulting from AIDS must not be disclosed as that is covered in the anti-discrimination clauses (<http://1.usa.gov/1GgSk4n>) of the ADA.

Some states do take into account events or conditions that create a stigma on a home. There would then be a legal responsibility that the seller discloses that information. "Some states even go so far as to impose an affirmative duty on a seller if they have knowledge that their real estate is being haunted by the dead," says attorney Matthew Reischer, CEO of LegalAdvice.com.

"In Virginia, emotional defects like murders and ghost sightings only have to be disclosed if they physically affect the property (Blood running from the walls? Gotta tell the buyer (<http://bit.ly/1Q0pRUZ>)),," says Matt Soniak at mentalfloss.com.

"Nevertheless, sellers are, in many states, obligated to disclose things that affect a house's marketability, which the oddities described above certainly could. Smart sellers would describe exactly what they've observed, without drawing conclusions," says Ilona Bray of Nolo.com.

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So you could address the neighborhood rumor about your home, that some find it haunted, but dispel the gossip as unsubstantiated. You could provide anecdotal evidence that you had never seen or experienced anything supernatural.

Essentially, you've obeyed the *spirit* of the law while dousing the information with skepticism. But if you neglect to inform a buyer about a known fact that may affect the marketability of a home, you could find yourself slapped with a lawsuit after the deal closes for not divulging the property as *stigmatized*.

Earthquake Zone

For Southern Californians, earthquakes are a relatively common occurrence. When it comes time to sell, that doesn't mean you can get away with avoiding the expressed declaration that your home is in an active earthquake zone.

That simple admission may save you, the seller, from costly litigation later on. The buyer has the right to sue for any withheld information that can affect the material structure of the home. Interestingly, the litmus test for this disclosure requires one of two elements to be satisfied. Either the homeowner must have "actual knowledge (<http://bit.ly/1FmoNj6>)" of the home being in an active earthquake fault zone, or that the maps with this information are "reasonably available."



Meth Lab

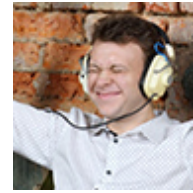
Disclosing the previous presence of a meth lab varies by state. Surprisingly, only about half of the states in the U.S. require this disclosure. This is unsettling news for prospective homebuyers in the states where that information may remain secret during the purchase process.

This is another situation where sellers may likely not want to divulge past tenant activities, but buyers surely would like to know what they're moving into. If a meth lab happened to be run on the premise, a seller must divulge that information to prospective buyers since chemical residue could do actual harm to an unaware family.



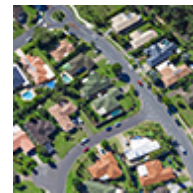
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We all dream of finding the perfect home. We obsess over the number of bedrooms, being close to good schools, and a nice view.



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Rental properties' requirements are even less stringent. "Property managers and leasing agents in Washington, Oregon, California, Montana, Wyoming, Utah, Arizona, South Dakota, Nebraska, New Mexico, Minnesota, Oklahoma, Illinois, Missouri, Kentucky, West Virginia, and New Hampshire need to [disclose the creation of methamphetamines \(http://bit.ly/1FYxvbN\)](http://bit.ly/1FYxvbN) in the unit. In Arizona, it is even illegal for anyone other than the owner to enter the unit until it has been cleaned in accordance with the law," says Elizabeth Whited of realtytimes.com.

Internet commenters are quick to add their personal horror stories to the mix. V Ruiz explains the horror of discovering her home in North Dakota was hiding a secret:

"Owner told us she lived in it for 5 years and had never had a problem with anything and that everything worked fine. Well that was a lie. We replaced carpets and flooring in three rooms and found a lot of mold and now we found meth paraphernalia and called cops and we were told there had been a search warrant at this residence."

Takeaway

The moral of this story is that you shouldn't hide your home's warts from potential buyers. The odds are high that keeping vital information from a buyer might land you in legal trouble after the sale. Being honest and upfront helps calm potential buyers and keeps any surprises from popping up after the sale closes.

Not all states require every disclosure listed above, but at the sake of being an honest human being, let the homebuyers know if something goes bump in the night. And especially be conscious of the potential damaging health effects from living in an old meth lab. You don't want your future buyers' children to suffer from a hidden fact about your property that might have dropped a few bucks off the asking price.

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